

PASSED**CHICKASAW TRIBAL LEGISLATURE****Permanent Resolution Number 20-001****Repeal of Title 2, Chapter 4, Article B, Section 2-426.C of the Chickasaw Nation Code
(Legislative Department Salaries)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation Code is in conflict with federal law regarding the payment of FICA and self employment taxes by Chickasaw Tribal Legislators, and

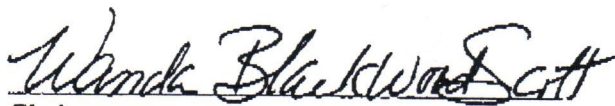
WHEREAS, The Chickasaw Tribal Legislature desires to correct the conflict.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby repeals the language contained in Title 2, Chapter 4, Article B, Section 2-426.C of the Chickasaw Nation Code and replaces such language with the word "(RESERVED)."

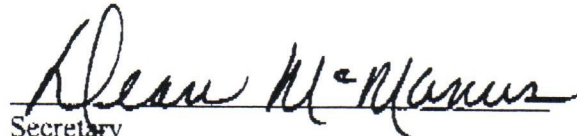
BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature also hereby repeals the following language from Title 2, Chapter 4, Article B, Section 2-426.B of the Chickasaw Nation Code:

"(See provisions on election for Self-Employment taxes in Part B.)"

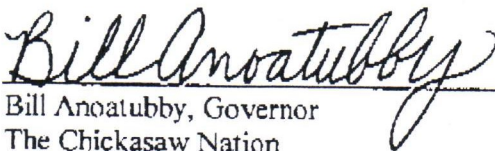
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on October 18, 2002, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: OCT 22 2002

SECTION 2-426 LEGISLATIVE DEPARTMENT SALARIES.

A. The base salary for all Tribal Legislators shall not include any travel allowances, but travel reimbursement expenses shall be in accordance with legislative travel policies. Tribal Legislators are entitled to a salary and allowances in accordance with Amendment IV of the Constitution of the Chickasaw Nation. (PR12-33, 9/15/95; PR13-01, 10/20/95)

B. Regular monthly salary for full-time Legislators shall be \$2,084.00, provided, however, that a Legislator may choose, by written notice to the Recording Secretary of the Legislature, to be paid on a scale that will be in keeping with the provisions or requirements of his/her retirement and/or Social Security income. Legislators shall be entitled to enroll in the retirement program of the Chickasaw Nation. Applicable taxes and other deductions from salary shall be in accordance with tribal policy. ~~(See provisions on election for Self-Employment taxes in part B.~~ The Legislators that are chosen as Chairperson or Chairperson Pro Tempore and as Secretary or Secretary Pro Tempore of the Chickasaw Tribal Legislature, shall be entitled to receive an additional allowance. Those allowances are as follows:

1. The Chairperson or the Chairperson Pro Tempore shall receive an additional \$250.00 per month for the duration of the time in which he serves in that capacity.

2. The Secretary or the Secretary Pro Tempore shall receive an additional \$150.00 per month for the duration of the time in which he serves in that capacity;

3. All Legislators shall receive a 3% cost of living allowance on October 1, 1997, and another 3% cost of living allowance on October 1, 1998. (PR12-33, 9/15/95; PR13-01, 10/20/95)

C. ~~(RESERVED) Tribal Legislators, upon their written authorization, may direct the Finance Department of the Chickasaw Nation to deduct from their salary, and all other allowances as itemized, herein, one-half of the applicable Federal Self-Employment Tax, with the Nation paying the other one-half of said tax, in the same manner as FICA withholdings are done for employees of the Nation. Any Tribal Legislator that is receiving Social Security Benefits in which their annual income from salary and allowances as a Legislator does not exceed the maximum allowable outside source of income established by the Social Security Administration in order to continue to receive full Social Security Benefits, then any such Legislator, upon their written authorization, can direct the Finance Department of the Chickasaw Nation, to deduct no self-employment taxes from the salary and allowances received as a Legislator. (TL9-001, 10/23/91; PR12-33, 9/15/95; PR13-01, 10/20/95)~~

D. Any employee of the Legislative Department, in addition to their regular wages, may, upon request, receive payment for the remainder of compensatory time that exceeds 40 hours of accumulated compensatory time. Such payments shall come out of the Legislative Department Budget. (PR12-24, 6/19/95)

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Explanation: This resolution repeals language that is in conflict with federal law regarding Internal Revenue Service rules and regulations pertaining to salaries paid to Legislators. The affected language is attached hereto.

Requested By: Wes Brantley
Chief Financial Administrator

Presented By: Mary Jo Green, Chairman *pro tempore*
Human Resources Committee